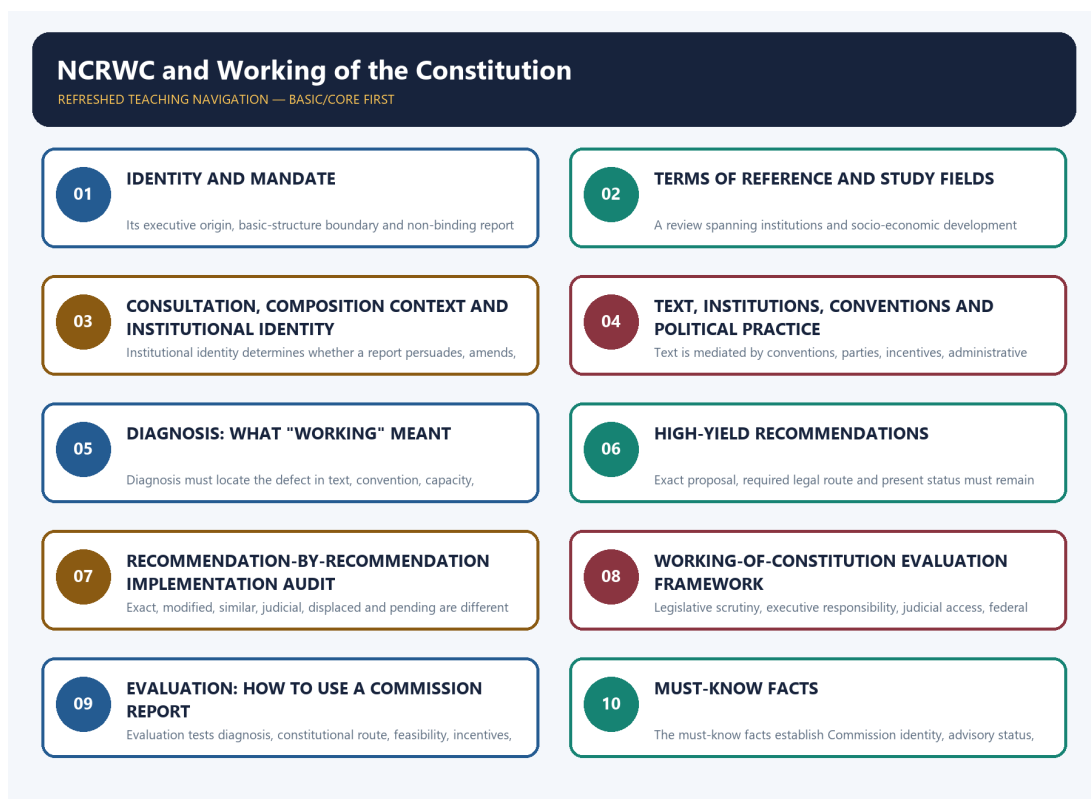


SOLVED PRACTICE WORKBOOK

NCRWC and Working of the Constitution - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

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NCRWC and Working of the Constitution - Solved Practice Workbook

BASIC MCQS / REMEDIATION

Original MCQs 1-48 - hard, varied and source-controlled

OM1. Which description of the NCRWC is constitutionally accurate?

- A. A temporary executive advisory commission constituted by Union government resolution.
- B. A parliamentary joint committee with power to amend the Constitution.
- C. A permanent constitutional commission created by the 42nd Amendment.
- D. A constituent body elected under Article 368.

Answer: A

Explanation: Its Government-resolution origin made its report advisory; amendment still required the constitutionally competent route.

OM2. The NCRWC was constituted and its report presented on which dates?

- A. 22 February 2001 and 31 March 2003.
- B. 22 February 2000 and 31 March 2002.
- C. 15 August 2000 and 26 November 2002.
- D. 26 January 2000 and 11 March 2002.

Answer: B

Explanation: The resolution is dated 22 February 2000; the signed report records presentation to the Prime Minister on 31 March 2002.

OM3. Who chaired the NCRWC?

- A. Justice R.S. Sarkaria.
- B. Dr Subhash C. Kashyap.
- C. Justice M.N. Venkatachaliah.
- D. Justice B.P. Jeevan Reddy.

Answer: C

Explanation: Justice M.N. Venkatachaliah was Chairperson; the other named persons were members.

OM4. The official NCRWC report records which membership fact?

- A. The Commission had only representatives of political parties.
- B. The secretary was counted as a twelfth member.
- C. All members were serving Supreme Court judges.
- D. The eleven-member count included the Chairperson, and P.A. Sangma had resigned.

Answer: D

Explanation: The report lists the Chairperson plus ten initial members and marks P.A. Sangma as having resigned.

OM5. Which proposition formed an express boundary of the terms of reference?

- A. Parliamentary democracy and the Constitution's basic structure or features were not to be interfered with.
- B. The Commission could replace parliamentary government with presidential government.
- C. Every recommendation would automatically amend the Constitution.
- D. Judicial review was outside the review mandate.

Answer: A

Explanation: The review was expressly bounded by parliamentary democracy and basic-structure/basic-feature preservation.

OM6. What was the NCRWC's central object?

- A. To prepare a new Constitution outside the existing amendment process.
- B. To review fifty years of constitutional working for efficient, smooth and effective governance and socio-economic development.
- C. To codify only election law.
- D. To adjudicate constitutional disputes between Union and States.

Answer: B

Explanation: The mandate was a comprehensive performance review, not adjudication or constituent replacement.

OM7. Which statement best distinguishes the NCRWC from the Constituent Assembly?

- A. Both exercised original constituent power.
- B. The Assembly was an executive advisory body.
- C. The Assembly framed the Constitution; the NCRWC later offered non-binding reforms on its working.
- D. The NCRWC ratified the Constitution drafted by Parliament.

Answer: C

Explanation: Founding authority and later advisory review are distinct institutional functions.

OM8. Consultation papers, expert studies and public responses primarily gave the NCRWC what kind of force?

- A. Automatic statutory force after publication.
- B. Constituent force superior to Article 368.
- C. Binding force equal to a Supreme Court judgment.
- D. Persuasive and evidentiary force, not legal enforceability.

Answer: D

Explanation: Consultation can improve quality and legitimacy without changing the report's advisory legal status.

OM9. The report's 249 recommendations were officially grouped by route as:

- A. 58 constitutional amendment, 86 legislation and 105 executive action.
- B. 86 constitutional amendment, 105 legislation and 58 judicial action.
- C. 105 constitutional amendment, 58 legislation and 86 referendum.
- D. 249 constitutional amendments only.

Answer: A

Explanation: The official Chapter 11 summary identifies 58 amendment and 86 legislative routes; the remaining 105 were executive-action routes.

OM10. Which NCRWC proposal concerned Fundamental Duties?

- A. Transfer all duties to Part III as absolute rights.
- B. Add duties to vote, participate democratically and pay taxes, among other proposals.
- C. Make only property ownership a constitutional duty.
- D. Delete every duty because it is non-justiciable.

Answer: B

Explanation: The report proposed additional civic duties; it did not recommend abolishing or converting the entire duties chapter.

OM11. Which rights proposal belongs to the NCRWC report?

- A. Abolition of access to courts.
- B. Removal of privacy from constitutional protection.

- C. Express protection against torture and a right to compensation for unlawful deprivation of life or liberty.
- D. A constitutional right to preventive detention without review.

Answer: C

Explanation: The report proposed stronger rights and remedies, including torture protection and compensation.

OM12. What did the NCRWC propose for Article 300A?

- A. Permit deprivation by executive instruction without law.
- B. Delete property protection entirely.
- C. Restore an unrestricted Fundamental Right to property in its pre-1978 form.
- D. Recast it around public purpose, non-arbitrariness and special rehabilitation protection for SC/ST land deprivation.

Answer: D

Explanation: The proposal strengthened lawful, non-arbitrary acquisition safeguards without simply restoring the former Part III right.

OM13. Which annual sitting-day minima did the NCRWC recommend?

- A. Lok Sabha 120 and Rajya Sabha 100.
- B. Lok Sabha 100 and Rajya Sabha 120.
- C. No numerical minima.
- D. Both Houses 60.

Answer: A

Explanation: The report recommended 120 days for Lok Sabha and 100 for Rajya Sabha.

OM14. For State legislatures, the NCRWC proposed:

- A. 120 days for every House regardless of size.
- B. 90 days for larger Houses and 50 days for Houses with fewer than 70 members.
- C. 30 days for Assemblies and no sittings for Councils.
- D. A numerical rule only for Union Parliament.

Answer: B

Explanation: The differentiated proposal used 90 days generally and 50 for Houses below 70 members.

OM15. What is a constructive vote of no confidence?

- A. A confidence vote decided by the Governor without the House.
- B. A judicial proceeding to remove the Prime Minister.
- C. A removal motion that simultaneously identifies an alternative leader capable of forming government.
- D. A party whip on every legislative matter.

Answer: C

Explanation: Constructive no-confidence joins displacement with replacement to reduce government-free instability.

OM16. The NCRWC's constructive no-confidence proposal required notice by at least:

- A. Two-thirds of the Council of States.
- B. One member.
- C. Half of all State legislatures.
- D. 20 per cent of the House.

Answer: D

Explanation: The report specified a 20 per cent notice threshold and an alternative leader.

OM17. The NCRWC recommended that the size of a Council of Ministers should ordinarily not exceed:

- A. 10 per cent of the strength of the popular House.

- B. 20 per cent of the electorate.
- C. 15 per cent of both Houses combined.
- D. One-third of the popular House.

Answer: A

Explanation: Its proposed ceiling was 10 per cent; this must not be confused with the later constitutional 15 per cent ceiling.

OM18. Why is the 91st Amendment not exact adoption of the NCRWC ministry-size proposal?

- A. It abolished every ceiling.
- B. It constitutionalised a 15 per cent ceiling, whereas NCRWC proposed 10 per cent.
- C. It applied only to the Rajya Sabha.
- D. It created the NCRWC as a constitutional body.

Answer: B

Explanation: A later related reform with a materially different threshold is modified or similar reform, not exact adoption.

OM19. Which anti-defection reform did the NCRWC recommend?

- A. Give party presidents final judicial power.
- B. Abolish every vote of conscience including issues outside confidence and money matters.
- C. Defectors should resign and recontest, with disqualification questions decided by the Election Commission.
- D. Restore the deleted one-third split exception.

Answer: C

Explanation: The report sought stricter electoral consequences and a different decision-maker.

OM20. Which whip reform is associated with the NCRWC?

- A. Give courts power to issue party whips.
- B. Prohibit parties from communicating voting positions.
- C. Constitutionally require whips on every amendment and private member's bill.
- D. Restrict binding whips substantially to confidence and money matters.

Answer: D

Explanation: Narrowing the whip was meant to restore deliberation while preserving government survival votes.

OM21. The NCRWC proposed appointing the Election Commission through a body including:

- A. Prime Minister, opposition leaders in both Houses, Lok Sabha Speaker and Rajya Sabha Deputy Chairman.
- B. The Supreme Court collegium alone.
- C. All Chief Ministers through the Inter-State Council.
- D. Only the Chief Election Commissioner.

Answer: A

Explanation: This was the report's recommendation; it must not be presented as current appointment law.

OM22. What was the NCRWC's position on political parties?

- A. Political parties should remain wholly outside legal disclosure.
- B. A comprehensive law should address registration, internal democracy, accounts and candidate selection.
- C. Party registration under Section 29A should be abolished without replacement.
- D. Only recognised national parties should be permitted.

Answer: B

Explanation: The report linked representative democracy to transparent, internally accountable party organisation.

OM23. Which statement about the NCRWC's judicial commission proposal is correct?

- A. It was created by the 99th Amendment before the NCRWC existed.
- B. It is the institution currently making appointments.
- C. It was distinct from the later NJAC and from the current collegium.
- D. It excluded the Chief Justice of India.

Answer: C

Explanation: NCRWC proposal, later NJAC enactment and current collegium are separate legal states.

OM24. For Supreme Court appointments, the proposed NCRWC commission included:

- A. President acting alone without consultation.
- B. Prime Minister and all Chief Ministers only.
- C. CJI and Attorney General only.
- D. CJI, two senior-most Supreme Court judges, Union Law Minister and one eminent person.

Answer: D

Explanation: The exact proposed design mixed judicial members, the Law Minister and one eminent person.

OM25. What retirement ages did NCRWC recommend?

- A. 65 for High Court judges and 68 for Supreme Court judges.
- B. 70 for every constitutional office.
- C. 68 for High Courts and 65 for the Supreme Court.
- D. 62 for both courts.

Answer: A

Explanation: The proposal raised both ages while retaining a higher Supreme Court age.

OM26. Which Governor-related recommendation is correctly stated?

- A. Governors should hold office without constitutional removal.
- B. The Chief Minister should be consulted before gubernatorial appointment.
- C. Governors should be directly elected nationwide.
- D. The Chief Minister should appoint the Governor unilaterally.

Answer: B

Explanation: The report sought consultation and restraint, not direct election or unilateral State appointment.

OM27. For action on State Bills, NCRWC suggested approximately:

- A. Three years for both offices.
- B. Seven days for the Governor and no period for the President.
- C. Six months for the Governor and three months for the President.
- D. No decision periods.

Answer: C

Explanation: The suggested timelines were recommendations and did not become the text of Articles 200-201.

OM28. Which body did NCRWC recommend operationalising for inter-State commerce?

- A. The Finance Commission under Article 280 as a commercial court.
- B. The GST Council before its constitutional creation.
- C. A new constituent assembly.
- D. An Inter-State Trade and Commerce Commission under Article 307.

Answer: D

Explanation: The report linked Article 307 to an institutional mechanism for inter-State trade and commerce.

OM29. How should the Disaster Management Act, 2005 be classified against NCRWC's proposal?

- A. A statutory response in the field, not proof that disaster management moved to the Concurrent List.
- B. A constitutional amendment to Article 368.
- C. Judicial invalidation of the NCRWC.
- D. Exact constitutional adoption of a Concurrent List transfer.

Answer: A

Explanation: The Act did not amend the Seventh Schedule, so functional similarity cannot establish exact adoption.

OM30. What is the correct implementation label for the 86th Amendment in relation to NCRWC's education proposals?

- A. A repeal of the Commission's report.
- B. A later reform requiring text-and-timing comparison, not automatic attribution from chronology.
- C. An executive action requiring no constitutional amendment.
- D. Conclusive proof that all NCRWC rights proposals were enacted.

Answer: B

Explanation: Implementation analysis must compare exact wording, route and independent reform history.

OM31. Which sequence is the most rigorous implementation audit?

- A. Date -> similarity -> claimed causation.
- B. Commission name -> political approval -> current law.
- C. Recommendation -> later instrument -> wording -> legal effect -> implementation verdict.
- D. Headline -> inference -> enacted status.

Answer: C

Explanation: A route-sensitive audit prevents chronology from being mistaken for causation.

OM32. A later reform resembles an NCRWC recommendation but official materials do not attribute it to NCRWC. The safest label is:

- A. Constitutional convention created by the Commission.
- B. Exact implementation.
- C. Judicial enforcement of the report.
- D. Functionally similar later reform without proven attribution.

Answer: D

Explanation: Similarity may be analytically relevant but does not prove causal implementation.

OM33. Which is an example of a substantially pending recommendation?

- A. A comprehensive political-parties law with internal-democracy architecture.
- B. The existence of Article 368.
- C. The Constitution's adoption in 1950.
- D. The Supreme Court's original jurisdiction.

Answer: A

Explanation: No comprehensive law embodying the report's full party-regulation architecture has been enacted.

OM34. Which reform was enacted and later judicially invalidated?

- A. The 91st Amendment ministry ceiling.
- B. The 99th Amendment/NJAC scheme.
- C. The 86th Amendment.
- D. The RTI Act.

Answer: B

Explanation: The NJAC episode is a distinct later design and cannot be described as the current NCRWC commission.

OM35. 'Working of the Constitution' is best evaluated through:

- A. The age of the Constitution alone.
- B. Election results alone.
- C. Text, institutions, conventions, political incentives and outcomes.
- D. Text alone.

Answer: C

Explanation: Constitutional performance depends on how formal rules interact with institutional and political practice.

OM36. Which indicator most directly tests legislative working?

- A. Only the length of the constitutional text.
- B. Only the number of government bills passed.
- C. Only the size of the ruling majority.
- D. Sitting time, committee scrutiny, financial control and reasoned debate.

Answer: D

Explanation: Legislative quality requires scrutiny and accountability, not merely output volume.

OM37. Which indicator most directly tests federal working?

- A. Consultation, fiscal predictability, council use, Governor restraint and dispute resolution.
- B. Abolition of intergovernmental negotiation.
- C. Uniformity of every State policy.
- D. Union legislation in every field.

Answer: A

Explanation: Federal performance combines autonomy, coordination and fair dispute management.

OM38. Which statement best captures constitutional morality?

- A. Automatic obedience to every political majority.
- B. Role fidelity, reason-giving, restraint and equal citizenship rooted in constitutional norms.
- C. Unreviewable judicial discretion.
- D. Personal moral preferences of office-holders.

Answer: B

Explanation: Constitutional morality disciplines public power through constitutional roles and values.

OM39. What does basic structure contribute to NCRWC analysis?

- A. A rule that no constitutional provision can ever change.
- B. A doctrine applicable only to ordinary statutes.
- C. A substantive limit on permissible amendment, not a ban on every institutional reform.
- D. A power for the Commission to amend the Constitution.

Answer: C

Explanation: The doctrine protects constitutional identity while permitting reforms that remain within it.

OM40. Which statement about Kesavananda Bharati (1973) is safest here?

- A. It abolished Article 368.
- B. It enacted the Commission's election proposals.
- C. It created the NCRWC.
- D. It supplies the basic-structure boundary for amendment, not evidence that NCRWC proposals became law.

Answer: D

Explanation: A judicial doctrine can constrain implementation without implementing an advisory report.

OM41. What is the proper relation between Fundamental Rights and DPSPs in reform analysis?

- A. Harmonise rights and social transformation without destroying either constitutional commitment.
- B. Use NCRWC recommendations to suspend both.
- C. Treat DPSPs as automatically superior to every Fundamental Right.
- D. Treat Fundamental Rights as barring all welfare legislation.

Answer: A

Explanation: Minerva Mills (1980) supports balance rather than absolute primacy of one constitutional part.

OM42. Which reform route should be preferred first?

- A. Constitutional amendment for every administrative defect.
- B. The least legally sufficient and institutionally workable route.
- C. Judicial direction for every political choice.
- D. Executive instruction even where the Constitution requires amendment.

Answer: B

Explanation: Route selection should follow diagnosis: convention, capacity, statute or constitutional text.

OM43. A problem caused primarily by poor administrative capacity should ordinarily begin with:

- A. A referendum outside the constitutional scheme.
- B. Immediate replacement of parliamentary democracy.
- C. Rules, staffing, technology, process and accountability repair.
- D. A constitutional amendment regardless of the legal text.

Answer: C

Explanation: Constitutional text cannot by itself cure every capacity and implementation failure.

OM44. Which question most improves feasibility analysis?

- A. Was it printed in a commission report?
- B. Does the proposal sound desirable in the abstract?
- C. Can its status be inferred from chronological proximity?
- D. Who implements, funds, monitors and reviews the reform?

Answer: D

Explanation: Executable reform requires actor, resource, metric, review and correction design.

OM45. What is the strongest criticism of treating NCRWC as a blueprint?

- A. Its recommendations differ in route, precision, political acceptability and later legal status.
- B. Commission reports can never contain useful evidence.
- C. The report concerned only judicial appointments.
- D. Every recommendation violated basic structure.

Answer: A

Explanation: A menu of heterogeneous proposals requires selective, current-law evaluation.

OM46. What is the strongest defence of NCRWC's continuing relevance?

- A. Every proposal has already been adopted exactly.
- B. It supplies a structured diagnosis and reform vocabulary for recurring institutional-performance problems.
- C. It is a court of final appeal.
- D. Its recommendations automatically override statutes.

Answer: B

Explanation: Its enduring value is analytical and evidentiary, not self-executing legal authority.

OM47. In an answer on NCRWC, which source label is essential?

- A. Call every proposal a constitutional provision.
- B. Use later judgments as proof of Commission authorship.
- C. Mark a report item as a recommendation and separately state current law or status.
- D. Avoid dates and legal routes.

Answer: C

Explanation: The recommendation-law firewall prevents a central factual error.

OM48. Which conclusion best evaluates the Commission?

- A. An obsolete document because not every proposal was enacted.
- B. A second Constituent Assembly whose whole report is binding.
- C. A judicial precedent controlling all public authorities.
- D. A valuable diagnostic reform menu whose proposals require independent constitutional route, feasibility and status verification.

Answer: D

Explanation: A balanced conclusion recognises value without confusing advice, causation and operative law.

PYQS AND ANSWER PRACTICE

Verified supporting Mains PYQs

PYQ boundary: No direct NCRWC-specific GS-II Mains question was located in the verified ledgers. The four questions below are reproduced as supporting/cross-owned routes; NCRWC evidence is used only where it answers the exact demand.

PYQ 1 - 2021 GS-II Q1 - supporting/cross-owned

Question: "Constitutional Morality" is rooted in the Constitution itself and is founded on its essential facets. Explain the doctrine of "Constitutional Morality" with the help of relevant judicial decisions.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: Constitutional morality is fidelity to the Constitution's text, structure, values and the restraints of public office, rather than compliance with transient social or political morality. It requires equal citizenship, reasoned power and respect for institutional roles. In *Government of NCT of Delhi v. Union of India* (2018), the Supreme Court linked it to constitutional trust, collaborative federalism and responsible government. *Navtej Singh Johar v. Union of India* (2018) held that constitutional morality must protect liberty and equality against exclusionary social morality. *Indian Young Lawyers Association* (2018) used equality and dignity to test religious exclusion, while later opinions demonstrate that the concept requires disciplined legal reasoning rather than personal preference. The NCRWC's focus on accountability, restraint and effective rights illustrates the same performance question: does institutional conduct realise constitutional commitments? Constitutional morality therefore makes a written Constitution a lived discipline of limited, answerable government.

Why this earns marks: It answers the exact demand through constitutional concepts, named authority and a controlled link to NCRWC.

How to improve this answer: Keep the NCRWC reference subordinate where the PYQ is owned by another topic; the exact question remains the organising demand.

Compression: Directive -> constitutional rule -> evidence -> analysis -> qualification -> verdict within 150 words.

Detailed examiner-grade model answer:

Introduction and thesis: Constitutional morality is fidelity to the Constitution's text, structure, values and the restraints of public office, rather than compliance with transient social or political morality. It requires equal citizenship, reasoned power and respect for institutional roles. In *Government of NCT of Delhi v. Union of India* (2018), the

Supreme Court linked it to constitutional trust, collaborative federalism and responsible government. *Navtej Singh Johar v. Union of India* (2018) held that constitutional morality must protect liberty and equality against exclusionary social morality. *Indian Young Lawyers Association* (2018) used equality and dignity to test religious exclusion, while later opinions demonstrate that the concept requires disciplined legal reasoning rather than personal preference. The NCRWC's focus on accountability, restraint and effective rights illustrates the same performance question: does institutional conduct realise constitutional commitments? Constitutional morality therefore makes a written Constitution a lived discipline of limited, answerable government.

Analytical body:

1. **Claim and named evidence:** PYQ 1 - 2021 GS-II Q1 - supporting/cross-owned **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** use named evidence, assign precise implementation status and end with a qualified verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Model solution: Constitutional morality is fidelity to the Constitution's text, structure, values and the restraints of **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** public office, rather than compliance with transient social or political morality. It requires equal **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** citizenship, reasoned power and respect for institutional roles. In *Government of NCT of Delhi v. Union of India*. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: Constitutional morality is fidelity to the Constitution's text, structure, values and the restraints of public office, rather than compliance with transient social or political morality. It requires equal citizenship, reasoned power and respect for institutional roles. In *Government of NCT of Delhi v. Union of India* (2018), the Supreme Court linked it to constitutional trust, collaborative federalism and responsible government. *Navtej Singh Johar v. Union of India* (2018) held that constitutional morality must protect liberty and equality against exclusionary social morality. *Indian Young Lawyers Association* (2018) used equality and dignity to test religious exclusion, while later opinions demonstrate that the concept requires disciplined legal reasoning rather than personal preference. The NCRWC's focus on accountability, restraint and effective rights illustrates the same performance question: does institutional conduct realise constitutional commitments? Constitutional morality therefore makes a written Constitution a lived discipline of limited, answerable government.

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

PYQ 2 - 2019 GS-II Q12 - supporting/cross-owned

Question: "Parliament's power to amend the Constitution is a limited power and it cannot be enlarged into absolute power." In the light of this statement explain whether Parliament under Article 368 of the Constitution can destroy the Basic Structure of the Constitution by expanding its amending power.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: Article 368 gives Parliament a wide constituent power, but not authority to destroy the Constitution's identity. *Kesavananda Bharati (1973)* held that every provision may be amended while the basic structure cannot be damaged or destroyed. The limitation is substantive: democracy, rule of law, judicial review, federalism, separation of powers and other foundational features cannot be abrogated through the amendment procedure. *Indira Nehru Gandhi v. Raj Narain* applied the doctrine to invalidate an amendment damaging free elections and judicial review. *Minerva Mills (1980)* struck clauses that sought unlimited amending power and excluded review, reasoning that limited amending power and judicial review are themselves basic features. Parliament therefore cannot use Article 368 to convert a limited power into an absolute one; a self-validating amendment would erase the distinction between a constituted amending body and original constituent power. This boundary also controlled NCRWC's express mandate: review could recommend reform within parliamentary democracy but could not authorise rewriting basic structure. Adaptability survives, but constitutional continuity sets its outer limit.

Why this earns marks: It answers the exact demand through constitutional concepts, named authority and a controlled link to NCRWC.

How to improve this answer: Keep the NCRWC reference subordinate where the PYQ is owned by another topic; the exact question remains the organising demand.

Compression: Directive -> constitutional rule -> evidence -> analysis -> qualification -> verdict within 250 words.

Detailed examiner-grade model answer:

Introduction and thesis: Article 368 gives Parliament a wide constituent power, but not authority to destroy the Constitution's identity. *Kesavananda Bharati (1973)* held that every provision may be amended while the basic structure cannot be damaged or destroyed. The limitation is substantive: democracy, rule of law, judicial review, federalism, separation of powers and other foundational features cannot be abrogated through the amendment procedure. *Indira Nehru Gandhi v. Raj Narain* applied the doctrine to invalidate an amendment damaging free elections and judicial review. *Minerva Mills (1980)* struck clauses that sought unlimited amending power and excluded review, reasoning that limited amending power and judicial review are themselves basic features. Parliament therefore cannot use Article 368 to convert a limited power into an absolute one; a self-validating amendment would erase the distinction between a constituted amending body and original constituent power. This boundary also controlled NCRWC's express mandate: review could recommend reform within parliamentary democracy but could not authorise rewriting basic structure. Adaptability survives, but constitutional continuity sets its outer limit.

Analytical body:

- Claim and named evidence:** PYQ 2 - 2019 GS-II Q12 - supporting/cross-owned **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- Claim and named evidence:** use named evidence, assign precise implementation status and end with a qualified verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
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- Claim and named evidence:** identity. *Kesavananda Bharati (1973)* held that every provision may be amended while the basic **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation,

regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

5. **Claim and named evidence:** structure cannot be damaged or destroyed. The limitation is substantive: democracy, rule of law, **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: Article 368 gives Parliament a wide constituent power, but not authority to destroy the Constitution's identity. *Kesavananda Bharati (1973)* held that every provision may be amended while the basic structure cannot be damaged or destroyed. The limitation is substantive: democracy, rule of law, judicial review, federalism, separation of powers and other foundational features cannot be abrogated through the amendment procedure. *Indira Nehru Gandhi v. Raj Narain* applied the doctrine to invalidate an amendment damaging free elections and judicial review. *Minerva Mills (1980)* struck clauses that sought unlimited amending power and excluded review, reasoning that limited amending power and judicial review are themselves basic features. Parliament therefore cannot use Article 368 to convert a limited power into an absolute one; a self-validating amendment would erase the distinction between a constituted amending body and original constituent power. This boundary also controlled NCRWC's express mandate: review could recommend reform within parliamentary democracy but could not authorise rewriting basic structure. Adaptability survives, but constitutional continuity sets its outer limit.

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

PYQ 3 - 2024 GS-II Q1 - supporting/cross-owned

Question: Examine the need for electoral reforms as suggested by various committees with particular reference to 'one nation-one election' principle. (*Spellings as printed.*)

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: Electoral reform is needed to reduce opaque finance, criminalisation, weak internal democracy, defection incentives and repeated disruption by election cycles. The NCRWC recommended transparent party accounts, internal-democracy law, narrower whips, stricter consequences for defection and a broader Election Commission appointment process. Simultaneous elections may reduce recurring Model Code interruptions and campaign expenditure and could create predictable governance windows. However, they also raise federal and accountability risks: premature dissolution, constructive-confidence design, synchronisation, caretaker conventions and constitutional amendments need broad agreement. Regional issues may be crowded out by national campaigns, and expenditure savings are not enough to justify weakened legislative responsibility. Reform should therefore begin with political-finance transparency, ECI independence, clean candidates and party democracy. Any simultaneous-election design must preserve confidence of the House, federal choice, feasible transition and independent election administration rather than pursue calendar uniformity as an end in itself.

Why this earns marks: It answers the exact demand through constitutional concepts, named authority and a controlled link to NCRWC.

How to improve this answer: Keep the NCRWC reference subordinate where the PYQ is owned by another topic; the exact question remains the organising demand.

Compression: Directive -> constitutional rule -> evidence -> analysis -> qualification -> verdict within 150 words.

Detailed examiner-grade model answer:

Introduction and thesis: Electoral reform is needed to reduce opaque finance, criminalisation, weak internal democracy, defection incentives and repeated disruption by election cycles. The NCRWC recommended transparent party accounts, internal-democracy law, narrower whips, stricter consequences for defection and a broader Election Commission appointment process. Simultaneous elections may reduce recurring Model Code interruptions and

campaign expenditure and could create predictable governance windows. However, they also raise federal and accountability risks: premature dissolution, constructive-confidence design, synchronisation, caretaker conventions and constitutional amendments need broad agreement. Regional issues may be crowded out by national campaigns, and expenditure savings are not enough to justify weakened legislative responsibility. Reform should therefore begin with political-finance transparency, ECI independence, clean candidates and party democracy. Any simultaneous-election design must preserve confidence of the House, federal choice, feasible transition and independent election administration rather than pursue calendar uniformity as an end in itself.

Analytical body:

1. **Claim and named evidence:** PYQ 3 - 2024 GS-II Q1 - supporting/cross-owned **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** use named evidence, assign precise implementation status and end with a qualified verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Model solution: Electoral reform is needed to reduce opaque finance, criminalisation, weak internal democracy, **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** defection incentives and repeated disruption by election cycles. The NCRWC recommended transparent **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** party accounts, internal-democracy law, narrower whips, stricter consequences for defection and a **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: Electoral reform is needed to reduce opaque finance, criminalisation, weak internal democracy, defection incentives and repeated disruption by election cycles. The NCRWC recommended transparent party accounts, internal-democracy law, narrower whips, stricter consequences for defection and a broader Election Commission appointment process. Simultaneous elections may reduce recurring Model Code interruptions and campaign expenditure and could create predictable governance windows. However, they also raise federal and accountability risks: premature dissolution, constructive-confidence design, synchronisation, caretaker conventions and constitutional amendments need broad agreement. Regional issues may be crowded out by national campaigns, and expenditure savings are not enough to justify weakened legislative responsibility. Reform should therefore begin with political-finance transparency, ECI independence, clean candidates and party democracy. Any simultaneous-election design must preserve confidence of the House, federal choice, feasible transition and independent election administration rather than pursue calendar uniformity as an end in itself.

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

PYQ 4 - 2025 GS-II Q11 - supporting/cross-owned

Question: "Constitutional morality is the fulcrum which acts as an essential check upon the high functionaries and citizens alike...." In view of the above observation of the Supreme Court, explain the concept of constitutional morality and its application to ensure balance between judicial independence and judicial accountability in India.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: Constitutional morality means fidelity to constitutional values, procedures and institutional limits. For judges, it protects decisional independence from executive, legislative and popular retaliation: security of tenure, protected conditions of service, judicial review and institutional control support this function. *Kesavananda Bharati* (1973) and the NJAC judgment locate judicial independence within basic structure. Yet independence is not insulation from standards. The same morality demands transparent selection criteria, reasoned judgments, consistent recusal, ethical disclosure, fair complaint procedures and timely discipline. *Government of NCT of Delhi and Navtej Singh Johar v. Union of India* (2018) show that public power must be exercised through role fidelity, equality and reason-giving.

Removal under Articles 124(4)-(5) is an exceptional parliamentary safeguard, while the Restatement of Values and in-house procedure operate below that threshold. Their non-statutory and opaque features leave an accountability gap. Reform should preserve judicial primacy against executive capture while adding a permanent appointments secretariat, published criteria, recorded reasons, diversity data and an independent, fair complaints process. Constitutional morality thus requires independence in adjudication and accountability in the constitution and exercise of judicial office; neither executive control nor corporate judicial secrecy satisfies it.

Why this earns marks: It answers the exact demand through constitutional concepts, named authority and a controlled link to NCRWC.

How to improve this answer: Keep the NCRWC reference subordinate where the PYQ is owned by another topic; the exact question remains the organising demand.

Compression: Directive -> constitutional rule -> evidence -> analysis -> qualification -> verdict within 250 words.

Original solved Mains practice

Detailed examiner-grade model answer:

Introduction and thesis: Constitutional morality means fidelity to constitutional values, procedures and institutional limits. For judges, it protects decisional independence from executive, legislative and popular retaliation: security of tenure, protected conditions of service, judicial review and institutional control support this function. *Kesavananda Bharati* (1973) and the NJAC judgment locate judicial independence within basic structure. Yet independence is not insulation from standards. The same morality demands transparent selection criteria, reasoned judgments, consistent recusal, ethical disclosure, fair complaint procedures and timely discipline. *Government of NCT of Delhi and Navtej Singh Johar v. Union of India* (2018) show that public power must be exercised through role fidelity, equality and reason-giving.

Removal under Articles 124(4)-(5) is an exceptional parliamentary safeguard, while the Restatement of Values and in-house procedure operate below that threshold. Their non-statutory and opaque features leave an accountability gap. Reform should preserve judicial primacy against executive capture while adding a permanent appointments secretariat, published criteria, recorded reasons, diversity data and an independent, fair complaints process. Constitutional morality thus requires independence in adjudication and accountability in the constitution and exercise of judicial office; neither executive control nor corporate judicial secrecy satisfies it.

Analytical body:

1. **Claim and named evidence:** PYQ 4 - 2025 GS-II Q11 - supporting/cross-owned **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** use named evidence, assign precise implementation status and end with a qualified verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism ->

differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

3. **Claim and named evidence:** Model solution: Constitutional morality means fidelity to constitutional values, procedures and institutional limits. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** For judges, it protects decisional independence from executive, legislative and popular retaliation **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** security of tenure, protected conditions of service, judicial review and institutional control support **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: Constitutional morality means fidelity to constitutional values, procedures and institutional limits. For judges, it protects decisional independence from executive, legislative and popular retaliation: security of tenure, protected conditions of service, judicial review and institutional control support this function. *Kesavananda Bharati (1973)* and the NJAC judgment locate judicial independence within basic structure. Yet independence is not insulation from standards. The same morality demands transparent selection criteria, reasoned judgments, consistent recusal, ethical disclosure, fair complaint procedures and timely discipline. *Government of NCT of Delhi and Navtej Singh Johar v. Union of India (2018)* show that public power must be exercised through role fidelity, equality and reason-giving.

Removal under Articles 124(4)-(5) is an exceptional parliamentary safeguard, while the Restatement of Values and in-house procedure operate below that threshold. Their non-statutory and opaque features leave an accountability gap. Reform should preserve judicial primacy against executive capture while adding a permanent appointments secretariat, published criteria, recorded reasons, diversity data and an independent, fair complaints process. Constitutional morality thus requires independence in adjudication and accountability in the constitution and exercise of judicial office; neither executive control nor corporate judicial secrecy satisfies it.

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M1 - 10 marks, 150 words

Question: Explain the mandate, composition and legal status of the NCRWC.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: The Union Government constituted the National Commission to Review the Working of the Constitution by resolution dated 22 February 2000. Justice M.N. Venkatachaliah chaired an eleven-member body drawing on judicial, parliamentary, legal, administrative and public-policy experience; the report records P.A. Sangma as having resigned. The report was adopted on 11 March and presented to the Prime Minister on 31 March 2002. Its mandate was to review fifty years of constitutional working and recommend changes for efficient governance and socio-economic development. The terms expressly preserved parliamentary democracy and the Constitution's basic structure or features. The Commission was neither a constituent assembly nor a constitutional or adjudicatory body. Its 249 recommendations were advisory and required separate amendment, legislation, executive action or institutional practice. Its authority was persuasive: evidence and expertise could guide reform, but neither publication nor executive acceptance made a proposal operative law.

Why this earns marks: It combines exact identity, full legal-status firewall, dates and route consequence.

How to improve this answer: If space is tight, list only Chairperson plus eleven-member character, but retain both dates and the basic-structure limit.

Compression: Resolution/date -> chair/composition -> mandate -> boundary -> advisory consequence.

Detailed examiner-grade model answer:

Introduction and thesis: The Union Government constituted the National Commission to Review the Working of the Constitution by resolution dated 22 February 2000. Justice M.N. Venkatachaliah chaired an eleven-member body drawing on judicial, parliamentary, legal, administrative and public-policy experience; the report records P.A. Sangma as having resigned. The report was adopted on 11 March and presented to the Prime Minister on 31 March 2002. Its mandate was to review fifty years of constitutional working and recommend changes for efficient governance and socio-economic development. The terms expressly preserved parliamentary democracy and the Constitution's basic structure or features. The Commission was neither a constituent assembly nor a constitutional or adjudicatory body. Its 249 recommendations were advisory and required separate amendment, legislation, executive action or institutional practice. Its authority was persuasive: evidence and expertise could guide reform, but neither publication nor executive acceptance made a proposal operative law.

Analytical body:

1. **Claim and named evidence:** use named evidence, assign precise implementation status and end with a qualified verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Model solution: The Union Government constituted the National Commission to Review the Working of the Constitution **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** by resolution dated 22 February 2000. Justice M.N. Venkatachaliah chaired an eleven-member body drawing **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** on judicial, parliamentary, legal, administrative and public-policy experience; the report records **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** P.A. Sangma as having resigned. The report was adopted on 11 March and presented to the Prime Minister **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The Union Government constituted the National Commission to Review the Working of the Constitution by resolution dated 22 February 2000. Justice M.N. Venkatachaliah chaired an eleven-member body drawing on judicial, parliamentary, legal, administrative and public-policy experience; the report records P.A. Sangma as having resigned. The report was adopted on 11 March and presented to the Prime Minister on 31 March 2002. Its mandate was to review fifty years of constitutional working and recommend changes for efficient governance and socio-economic development. The terms expressly preserved parliamentary democracy and the Constitution's basic structure or features. The Commission was neither a constituent assembly nor a constitutional or adjudicatory body. Its 249 recommendations were advisory and required separate amendment, legislation, executive action or institutional practice. Its authority was persuasive: evidence and expertise could guide reform, but neither publication nor executive acceptance made a proposal operative law.

Executable exam-length answer / compression plan: For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named

evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M2 - 15 marks, 250 words

Question: Assess the NCRWC's principal recommendations for Parliament and the political process.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: The NCRWC diagnosed a gap between representative institutions and effective accountability. For Parliament, it proposed minimum annual sittings of 120 days for Lok Sabha and 100 for Rajya Sabha, stronger committee scrutiny, defined privileges and better legislative planning. A constructive vote of no confidence, moved with 20 per cent notice and an alternative leader, sought stability without removing House responsibility. It recommended a Council of Ministers ceiling of 10 per cent of the popular House.

For the political process, it advocated a comprehensive party law covering registration, internal democracy, accounts and candidate selection; stricter disqualification of defectors, resignation and recontest; Election Commission decision on disqualification; and a whip substantially confined to confidence and money matters. It also proposed a broad appointments body for the Election Commission. These recommendations form a coherent chain: democratic parties produce candidates, elections confer authority, Parliament scrutinises government and confidence rules maintain responsibility.

Implementation is uneven. The 91st Amendment created a different 15 per cent ministry ceiling, so it is related rather than exact adoption. A comprehensive political-parties law and narrow-whip design remain substantially pending. The report remains useful because today's problems of low deliberation, opaque finance and defection persist, but feasibility, federal effects and current law must be tested proposal by proposal.

Why this earns marks: It organises proposals into an institutional chain and performs a precise implementation audit.

How to improve this answer: Add one current parliamentary-performance indicator only from a dated official source; do not replace doctrinal analysis with statistics.

Compression: Parliament proposals -> party/election proposals -> institutional chain -> status audit -> balanced verdict.

Detailed examiner-grade model answer:

Introduction and thesis: The NCRWC diagnosed a gap between representative institutions and effective accountability. For Parliament, it proposed minimum annual sittings of 120 days for Lok Sabha and 100 for Rajya Sabha, stronger committee scrutiny, defined privileges and better legislative planning. A constructive vote of no confidence, moved with 20 per cent notice and an alternative leader, sought stability without removing House responsibility. It recommended a Council of Ministers ceiling of 10 per cent of the popular House.

For the political process, it advocated a comprehensive party law covering registration, internal democracy, accounts and candidate selection; stricter disqualification of defectors, resignation and recontest; Election Commission decision on disqualification; and a whip substantially confined to confidence and money matters. It also proposed a broad appointments body for the Election Commission. These recommendations form a coherent chain: democratic parties produce candidates, elections confer authority, Parliament scrutinises government and confidence rules maintain responsibility.

Implementation is uneven. The 91st Amendment created a different 15 per cent ministry ceiling, so it is related rather than exact adoption. A comprehensive political-parties law and narrow-whip design remain substantially pending. The report remains useful because today's problems of low deliberation, opaque finance and defection persist, but feasibility, federal effects and current law must be tested proposal by proposal.

Analytical body:

1. **Claim and named evidence:** use named evidence, assign precise implementation status and end with a qualified verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

2. **Claim and named evidence:** Model solution: The NCRWC diagnosed a gap between representative institutions and effective accountability. For **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Parliament, it proposed minimum annual sittings of 120 days for Lok Sabha and 100 for Rajya Sabha, **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** stronger committee scrutiny, defined privileges and better legislative planning. A constructive vote **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** of no confidence, moved with 20 per cent notice and an alternative leader, sought stability without **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The NCRWC diagnosed a gap between representative institutions and effective accountability. For Parliament, it proposed minimum annual sittings of 120 days for Lok Sabha and 100 for Rajya Sabha, stronger committee scrutiny, defined privileges and better legislative planning. A constructive vote of no confidence, moved with 20 per cent notice and an alternative leader, sought stability without removing House responsibility. It recommended a Council of Ministers ceiling of 10 per cent of the popular House.

For the political process, it advocated a comprehensive party law covering registration, internal democracy, accounts and candidate selection; stricter disqualification of defectors, resignation and recontest; Election Commission decision on disqualification; and a whip substantially confined to confidence and money matters. It also proposed a broad appointments body for the Election Commission. These recommendations form a coherent chain: democratic parties produce candidates, elections confer authority, Parliament scrutinises government and confidence rules maintain responsibility.

Implementation is uneven. The 91st Amendment created a different 15 per cent ministry ceiling, so it is related rather than exact adoption. A comprehensive political-parties law and narrow-whip design remain substantially pending. The report remains useful because today's problems of low deliberation, opaque finance and defection persist, but feasibility, federal effects and current law must be tested proposal by proposal.

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M3 - 15 marks, 250 words

Question: Critically examine the NCRWC's recommendations on judicial reform.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: The NCRWC sought to reconcile judicial independence with appointment quality, access and accountability. For Supreme Court appointments it proposed a National Judicial Commission comprising the Chief Justice of India, two senior-most Supreme Court judges, the Union Law Minister and an eminent person nominated after consulting the CJI. It also envisaged a complaints mechanism, stronger court administration, access to justice and retirement ages of 65 for High Court and 68 for Supreme Court judges.

The design's strength was to treat independence and accountability as connected rather than opposing values. Multi-institutional input could broaden information; complaint handling below removal could address the accountability gap; higher retirement ages could reduce differential incentives. Yet membership, transparency, decisive voice and

protection from executive bargaining determine whether a commission actually preserves independence.

The proposal must not be equated with the later 99th Amendment/NJAC scheme, which the Supreme Court invalidated in 2015, or with the current collegium. That history shows that a reform's label cannot answer the basic-structure question. A durable model needs judicial insulation, published criteria, reasoned selections, diversity reporting, a permanent secretariat and fair independent complaints process. NCRWC supplies a reform architecture, not the present law.

Why this earns marks: It states the exact proposed design, evaluates both values and prevents NCRWC/NJAC/collegium conflation.

How to improve this answer: Name the NJAC judgment only to explain the basic-structure constraint; avoid turning the answer into a full collegium history.

Compression: Exact design -> benefits -> capture risks -> current-law firewall -> calibrated reform.

Detailed examiner-grade model answer:

Introduction and thesis: The NCRWC sought to reconcile judicial independence with appointment quality, access and accountability. For Supreme Court appointments it proposed a National Judicial Commission comprising the Chief Justice of India, two senior-most Supreme Court judges, the Union Law Minister and an eminent person nominated after consulting the CJI. It also envisaged a complaints mechanism, stronger court administration, access to justice and retirement ages of 65 for High Court and 68 for Supreme Court judges.

The design's strength was to treat independence and accountability as connected rather than opposing values. Multi-institutional input could broaden information; complaint handling below removal could address the accountability gap; higher retirement ages could reduce differential incentives. Yet membership, transparency, decisive voice and protection from executive bargaining determine whether a commission actually preserves independence.

The proposal must not be equated with the later 99th Amendment/NJAC scheme, which the Supreme Court invalidated in 2015, or with the current collegium. That history shows that a reform's label cannot answer the basic-structure question. A durable model needs judicial insulation, published criteria, reasoned selections, diversity reporting, a permanent secretariat and fair independent complaints process. NCRWC supplies a reform architecture, not the present law.

Analytical body:

1. **Claim and named evidence:** use named evidence, assign precise implementation status and end with a qualified verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Model solution: The NCRWC sought to reconcile judicial independence with appointment quality, access and accountability. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** For Supreme Court appointments it proposed a National Judicial Commission comprising the Chief Justice **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** of India, two senior-most Supreme Court judges, the Union Law Minister and an eminent person nominated **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** after consulting the CJI. It also envisaged a complaints mechanism, stronger court administration, **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The NCRWC sought to reconcile judicial independence with appointment quality, access and accountability. For Supreme Court appointments it proposed a National Judicial Commission comprising the Chief Justice of India, two senior-most Supreme Court judges, the Union Law Minister and an eminent person nominated after consulting the CJI. It also envisaged a complaints mechanism, stronger court administration, access to justice and retirement ages of 65 for High Court and 68 for Supreme Court judges.

The design's strength was to treat independence and accountability as connected rather than opposing values. Multi-institutional input could broaden information; complaint handling below removal could address the accountability gap; higher retirement ages could reduce differential incentives. Yet membership, transparency, decisive voice and protection from executive bargaining determine whether a commission actually preserves independence.

The proposal must not be equated with the later 99th Amendment/NJAC scheme, which the Supreme Court invalidated in 2015, or with the current collegium. That history shows that a reform's label cannot answer the basic-structure question. A durable model needs judicial insulation, published criteria, reasoned selections, diversity reporting, a permanent secretariat and fair independent complaints process. NCRWC supplies a reform architecture, not the present law.

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M4 - 10 marks, 150 words

Question: Why is implementation of commission recommendations a question of causation as well as chronology?

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: A later reform occurring after a commission report is not necessarily its implementation. A rigorous audit first states the exact recommendation, then identifies the later legal instrument, compares wording and route, examines legal effect and finally assigns a status. The NCRWC proposed a 10 per cent ministry ceiling; the 91st Amendment adopted 15 per cent, making it a modified related reform rather than exact adoption. It proposed moving disaster management to the Concurrent List; the Disaster Management Act, 2005 created a statutory framework but did not amend that List. Its judicial commission was distinct from the later NJAC, which was enacted and invalidated. Proper labels therefore include exact adoption, modified adoption, functionally similar later reform without proven attribution, judicial development, rejected or displaced, and pending. This method preserves both historical influence and present-law accuracy.

Why this earns marks: It converts an abstract causation warning into a repeatable five-step audit with three examples.

How to improve this answer: If evidence of attribution exists, cite the official statement; otherwise use a neutral similarity label.

Compression: Proposal -> instrument -> wording -> legal effect -> status; use three contrast examples.

Detailed examiner-grade model answer:

Introduction and thesis: A later reform occurring after a commission report is not necessarily its implementation. A rigorous audit first states the exact recommendation, then identifies the later legal instrument, compares wording and route, examines legal effect and finally assigns a status. The NCRWC proposed a 10 per cent ministry ceiling; the 91st Amendment adopted 15 per cent, making it a modified related reform rather than exact adoption. It proposed moving disaster management to the Concurrent List; the Disaster Management Act, 2005 created a statutory framework but did not amend that List. Its judicial commission was distinct from the later NJAC, which was enacted and invalidated. Proper labels therefore include exact adoption, modified adoption, functionally similar later reform without proven attribution, judicial development, rejected or displaced, and pending. This method preserves both historical influence and present-law accuracy.

Analytical body:

1. **Claim and named evidence:** use named evidence, assign precise implementation status and end with a qualified verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Model solution: A later reform occurring after a commission report is not necessarily its implementation. A rigorous **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** audit first states the exact recommendation, then identifies the later legal instrument, compares **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** wording and route, examines legal effect and finally assigns a status. The NCRWC proposed a 10 per cent **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** ministry ceiling; the 91st Amendment adopted 15 per cent, making it a modified related reform rather **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: A later reform occurring after a commission report is not necessarily its implementation. A rigorous audit first states the exact recommendation, then identifies the later legal instrument, compares wording and route, examines legal effect and finally assigns a status. The NCRWC proposed a 10 per cent ministry ceiling; the 91st Amendment adopted 15 per cent, making it a modified related reform rather than exact adoption. It proposed moving disaster management to the Concurrent List; the Disaster Management Act, 2005 created a statutory framework but did not amend that List. Its judicial commission was distinct from the later NJAC, which was enacted and invalidated. Proper labels therefore include exact adoption, modified adoption, functionally similar later reform without proven attribution, judicial development, rejected or displaced, and pending. This method preserves both historical influence and present-law accuracy.

Executable exam-length answer / compression plan: For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M5 - 15 marks, 250 words

Question: Evaluate the working of the Constitution beyond its formal text.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: A Constitution works through an interaction of text, institutions, conventions, incentives, capacity and outcomes. Formal provisions allocate authority, but institutions translate them into decisions; parties and conventions shape restraint; administration supplies implementation; courts and audit institutions provide correction. The NCRWC therefore examined electoral integrity, legislative scrutiny, executive accountability, judicial access, federal consultation, decentralisation and rights enforcement rather than merely drafting amendments.

Performance should be measured through a dashboard. Legislature: sitting time, committee scrutiny, financial control and reasoned debate. Executive: cabinet responsibility, legality, transparency and delivery. Judiciary: access, pendency, independence and compliance. Federalism: consultation, fiscal predictability, Governor restraint and

dispute resolution. Local government: devolution of functions, funds and functionaries. Rights: affordability of remedies and implementation of orders.

The approach avoids textual fetishism: a sound provision can underperform through bad incentives or weak capacity. It also avoids political impressionism because each claim must be tied to a constitutional function and evidence. Reform should diagnose whether the defect lies in text, convention, capacity, incentive or remedy, then choose the least legally sufficient route. Constitutional success is sustained role fidelity and corrective capacity, not merely institutional survival.

Why this earns marks: It defines constitutional working, supplies measurable dimensions and links diagnosis to the reform route.

How to improve this answer: Use a two-column dashboard in the exam and add one concrete institutional example under the dimension named in the question.

Compression: Six-factor definition -> five-part dashboard -> two analytical cautions -> route-sensitive verdict.

Detailed examiner-grade model answer:

Introduction and thesis: A Constitution works through an interaction of text, institutions, conventions, incentives, capacity and outcomes. Formal provisions allocate authority, but institutions translate them into decisions; parties and conventions shape restraint; administration supplies implementation; courts and audit institutions provide correction. The NCRWC therefore examined electoral integrity, legislative scrutiny, executive accountability, judicial access, federal consultation, decentralisation and rights enforcement rather than merely drafting amendments.

Performance should be measured through a dashboard. Legislature: sitting time, committee scrutiny, financial control and reasoned debate. Executive: cabinet responsibility, legality, transparency and delivery. Judiciary: access, pendency, independence and compliance. Federalism: consultation, fiscal predictability, Governor restraint and dispute resolution. Local government: devolution of functions, funds and functionaries. Rights: affordability of remedies and implementation of orders.

The approach avoids textual fetishism: a sound provision can underperform through bad incentives or weak capacity. It also avoids political impressionism because each claim must be tied to a constitutional function and evidence. Reform should diagnose whether the defect lies in text, convention, capacity, incentive or remedy, then choose the least legally sufficient route. Constitutional success is sustained role fidelity and corrective capacity, not merely institutional survival.

Analytical body:

1. **Claim and named evidence:** use named evidence, assign precise implementation status and end with a qualified verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Model solution: A Constitution works through an interaction of text, institutions, conventions, incentives, capacity **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** and outcomes. Formal provisions allocate authority, but institutions translate them into decisions **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** parties and conventions shape restraint; administration supplies implementation; courts and audit **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** institutions provide correction. The NCRWC therefore examined electoral integrity, legislative **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: A Constitution works through an interaction of text, institutions, conventions, incentives, capacity and outcomes. Formal provisions allocate authority, but institutions translate them into decisions; parties and conventions shape restraint; administration supplies implementation; courts and audit institutions provide correction. The NCRWC therefore examined electoral integrity, legislative scrutiny, executive accountability, judicial access, federal consultation, decentralisation and rights enforcement rather than merely drafting amendments.

Performance should be measured through a dashboard. Legislature: sitting time, committee scrutiny, financial control and reasoned debate. Executive: cabinet responsibility, legality, transparency and delivery. Judiciary: access, pendency, independence and compliance. Federalism: consultation, fiscal predictability, Governor restraint and dispute resolution. Local government: devolution of functions, funds and functionaries. Rights: affordability of remedies and implementation of orders.

The approach avoids textual fetishism: a sound provision can underperform through bad incentives or weak capacity. It also avoids political impressionism because each claim must be tied to a constitutional function and evidence. Reform should diagnose whether the defect lies in text, convention, capacity, incentive or remedy, then choose the least legally sufficient route. Constitutional success is sustained role fidelity and corrective capacity, not merely institutional survival.

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M6 - 15 marks, 250 words

Question: Discuss the NCRWC's federal recommendations and their constitutional significance.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: The NCRWC treated federalism as a continuing practice of autonomy, consultation and restraint. It recommended consulting the Chief Minister before appointing a Governor, objective handling of Article 356 situations, stronger intergovernmental forums and an Inter-State Trade and Commerce Commission under Article 307. For State Bills it suggested roughly six months for gubernatorial action and three months for Presidential action. It also linked decentralisation to effective transfer of functions, funds and functionaries.

These proposals address recurring friction at institutional junctions: an appointed Governor and an elected ministry, Union emergency power and State autonomy, legislative reservation and democratic delay, or common-market needs and State regulation. Their constitutional significance lies less in centralisation than in proceduralising discretion through consultation, reasons, time and review. *S.R. Bommai (1994)* independently supplies a judicial control on Article 356; it is not evidence that the Court implemented NCRWC.

Most exact proposals remain dependent on constitutional or legislative action and convention. The suggested Bill timelines did not enter Articles 200-201, and Article 307's commission architecture is not operative as proposed. The durable lesson is that federal trust requires predictable procedure, not merely allocation of subjects.

Why this earns marks: It links each proposal to a concrete federal friction and separates judicial development from report implementation.

How to improve this answer: Do not state the proposed Bill periods as current constitutional deadlines; label them expressly as NCRWC suggestions.

Compression: Four proposals -> four friction points -> *S.R. Bommai (1994)* firewall -> status -> procedural-federalism verdict.

Detailed examiner-grade model answer:

Introduction and thesis: The NCRWC treated federalism as a continuing practice of autonomy, consultation and restraint. It recommended consulting the Chief Minister before appointing a Governor, objective handling of Article 356

situations, stronger intergovernmental forums and an Inter-State Trade and Commerce Commission under Article 307. For State Bills it suggested roughly six months for gubernatorial action and three months for Presidential action. It also linked decentralisation to effective transfer of functions, funds and functionaries.

These proposals address recurring friction at institutional junctions: an appointed Governor and an elected ministry, Union emergency power and State autonomy, legislative reservation and democratic delay, or common-market needs and State regulation. Their constitutional significance lies less in centralisation than in proceduralising discretion through consultation, reasons, time and review. *S.R. Bommai (1994)* independently supplies a judicial control on Article 356; it is not evidence that the Court implemented NCRWC.

Most exact proposals remain dependent on constitutional or legislative action and convention. The suggested Bill timelines did not enter Articles 200-201, and Article 307's commission architecture is not operative as proposed. The durable lesson is that federal trust requires predictable procedure, not merely allocation of subjects.

Analytical body:

1. **Claim and named evidence:** use named evidence, assign precise implementation status and end with a qualified verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Model solution: The NCRWC treated federalism as a continuing practice of autonomy, consultation and restraint. It **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** recommended consulting the Chief Minister before appointing a Governor, objective handling of Article **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** situations, stronger intergovernmental forums and an Inter-State Trade and Commerce Commission **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** under Article 307. For State Bills it suggested roughly six months for gubernatorial action and three **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The NCRWC treated federalism as a continuing practice of autonomy, consultation and restraint. It recommended consulting the Chief Minister before appointing a Governor, objective handling of Article 356 situations, stronger intergovernmental forums and an Inter-State Trade and Commerce Commission under Article 307. For State Bills it suggested roughly six months for gubernatorial action and three months for Presidential action. It also linked decentralisation to effective transfer of functions, funds and functionaries.

These proposals address recurring friction at institutional junctions: an appointed Governor and an elected ministry, Union emergency power and State autonomy, legislative reservation and democratic delay, or common-market needs and State regulation. Their constitutional significance lies less in centralisation than in proceduralising discretion through consultation, reasons, time and review. *S.R. Bommai (1994)* independently supplies a judicial control on Article 356; it is not evidence that the Court implemented NCRWC.

Most exact proposals remain dependent on constitutional or legislative action and convention. The suggested Bill timelines did not enter Articles 200-201, and Article 307's commission architecture is not operative as proposed. The durable lesson is that federal trust requires predictable procedure, not merely allocation of subjects.

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named

evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M7 - 10 marks, 150 words

Question: Explain the least-legally-sufficient-route principle in constitutional reform.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: Institutional failure does not always prove defective constitutional text. The reformer should diagnose whether the gap concerns convention, administrative capacity, incentives, ordinary law, constitutional allocation or remedies. A practice failure may need transparency, reasons and convention; a capacity failure may need staffing, finance and process; a statutory gap needs legislation; only a constitutional barrier requires Article 368. Each route must then be tested for basic structure, rights, federalism, democratic legitimacy, implementability and review. The NCRWC's 249 recommendations themselves used different routes-58 constitutional amendments, 86 legislative measures and 105 executive actions. Using amendment for every problem rigidifies administration; using executive action where higher law is required evades legality. The least sufficient route preserves constitutional economy while making the responsible actor, resource, metric and corrective mechanism visible.

Why this earns marks: It gives a diagnostic ladder, exact route figures and the consequences of both over- and under-constitutionalisation.

How to improve this answer: Illustrate one capacity reform and one amendment-only reform if the question supplies a sector.

Compression: Diagnose five gaps -> choose route -> test limits -> route counts -> two-error warning.

Detailed examiner-grade model answer:

Introduction and thesis: Institutional failure does not always prove defective constitutional text. The reformer should diagnose whether the gap concerns convention, administrative capacity, incentives, ordinary law, constitutional allocation or remedies. A practice failure may need transparency, reasons and convention; a capacity failure may need staffing, finance and process; a statutory gap needs legislation; only a constitutional barrier requires Article 368. Each route must then be tested for basic structure, rights, federalism, democratic legitimacy, implementability and review. The NCRWC's 249 recommendations themselves used different routes-58 constitutional amendments, 86 legislative measures and 105 executive actions. Using amendment for every problem rigidifies administration; using executive action where higher law is required evades legality. The least sufficient route preserves constitutional economy while making the responsible actor, resource, metric and corrective mechanism visible.

Analytical body:

1. **Claim and named evidence:** use named evidence, assign precise implementation status and end with a qualified verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Model solution: Institutional failure does not always prove defective constitutional text. The reformer should diagnose **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** whether the gap concerns convention, administrative capacity, incentives, ordinary law, constitutional **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** allocation or remedies. A practice failure may need transparency, reasons and convention; a capacity **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** failure may need staffing, finance and process; a statutory gap needs legislation; only a constitutional **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism ->

differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: Institutional failure does not always prove defective constitutional text. The reformer should diagnose whether the gap concerns convention, administrative capacity, incentives, ordinary law, constitutional allocation or remedies. A practice failure may need transparency, reasons and convention; a capacity failure may need staffing, finance and process; a statutory gap needs legislation; only a constitutional barrier requires Article 368. Each route must then be tested for basic structure, rights, federalism, democratic legitimacy, implementability and review. The NCRWC's 249 recommendations themselves used different routes-58 constitutional amendments, 86 legislative measures and 105 executive actions. Using amendment for every problem rigidifies administration; using executive action where higher law is required evades legality. The least sufficient route preserves constitutional economy while making the responsible actor, resource, metric and corrective mechanism visible.

Executable exam-length answer / compression plan: For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M8 - 20 marks, 250 words

Question: Has the NCRWC succeeded as a review of the working of the Constitution? Give a reasoned assessment.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: Success must be judged at three levels: diagnosis, reform design and verified institutional effect. The NCRWC succeeded diagnostically by reviewing fifty years of practice across rights, elections, Parliament, executive government, judiciary, federalism, decentralisation and administration. Its consultation papers and 249 recommendations created a durable map linking constitutional values to institutional performance. It also respected an express boundary: parliamentary democracy and basic structure were not to be rewritten.

Its design contribution was substantial. Minimum sitting days, constructive no-confidence, party democracy, narrower whips, judicial appointments and complaints, Governor consultation, reserved-Bill timelines and route-sensitive reform remain usable proposals. Some later reforms are related: the 91st Amendment imposed a different ministry ceiling; rights, transparency and local-governance measures developed through separate processes. Other proposals, such as a comprehensive party law and the specific National Judicial Commission, remain pending, displaced or transformed.

However, implementation cannot be credited by chronology alone. Political incentives, federal consent, basic-structure limits, fiscal capacity and institutional ownership filter every proposal. A report without a public recommendation-status dashboard also weakens accountability.

The NCRWC therefore succeeded more as a constitutional diagnostic and reform menu than as an implemented programme. Its present value lies in disciplined comparison: recommendation, route, later instrument, legal effect, evidence of attribution and current status.

Why this earns marks: It uses explicit success criteria, representative proposals, implementation qualifications and a graded verdict.

How to improve this answer: A 20-mark answer should preserve the three-level test and at least four different status labels rather than list recommendations.

Compression: Three success criteria -> achievements -> mixed status -> implementation filters -> graded verdict.

Detailed examiner-grade model answer:

Introduction and thesis: Success must be judged at three levels: diagnosis, reform design and verified institutional effect. The NCRWC succeeded diagnostically by reviewing fifty years of practice across rights, elections, Parliament, executive government, judiciary, federalism, decentralisation and administration. Its consultation papers and 249

recommendations created a durable map linking constitutional values to institutional performance. It also respected an express boundary: parliamentary democracy and basic structure were not to be rewritten.

Its design contribution was substantial. Minimum sitting days, constructive no-confidence, party democracy, narrower whips, judicial appointments and complaints, Governor consultation, reserved-Bill timelines and route-sensitive reform remain usable proposals. Some later reforms are related: the 91st Amendment imposed a different ministry ceiling; rights, transparency and local-governance measures developed through separate processes. Other proposals, such as a comprehensive party law and the specific National Judicial Commission, remain pending, displaced or transformed.

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The NCRWC therefore succeeded more as a constitutional diagnostic and reform menu than as an implemented programme. Its present value lies in disciplined comparison: recommendation, route, later instrument, legal effect, evidence of attribution and current status.

Analytical body:

1. **Claim and named evidence:** use named evidence, assign precise implementation status and end with a qualified verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Model solution: Success must be judged at three levels: diagnosis, reform design and verified institutional effect. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** The NCRWC succeeded diagnostically by reviewing fifty years of practice across rights, elections, **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Parliament, executive government, judiciary, federalism, decentralisation and administration. Its **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** consultation papers and 249 recommendations created a durable map linking constitutional values to **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: Success must be judged at three levels: diagnosis, reform design and verified institutional effect. The NCRWC succeeded diagnostically by reviewing fifty years of practice across rights, elections, Parliament, executive government, judiciary, federalism, decentralisation and administration. Its consultation papers and 249 recommendations created a durable map linking constitutional values to institutional performance. It also respected an express boundary: parliamentary democracy and basic structure were not to be rewritten.

Its design contribution was substantial. Minimum sitting days, constructive no-confidence, party democracy, narrower whips, judicial appointments and complaints, Governor consultation, reserved-Bill timelines and route-sensitive reform remain usable proposals. Some later reforms are related: the 91st Amendment imposed a different ministry ceiling; rights, transparency and local-governance measures developed through separate processes. Other proposals, such as a comprehensive party law and the specific National Judicial Commission, remain pending, displaced or transformed.

However, implementation cannot be credited by chronology alone. Political incentives, federal consent, basic-structure limits, fiscal capacity and institutional ownership filter every proposal. A report without a public recommendation-status dashboard also weakens accountability.

The NCRWC therefore succeeded more as a constitutional diagnostic and reform menu than as an implemented programme. Its present value lies in disciplined comparison: recommendation, route, later instrument, legal effect, evidence of attribution and current status.

Executable exam-length answer / compression plan: For a 20-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise six to eight points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.